



Learning Space

POST INDEPENDENCE DEVELOPMENTS

LAND REFORMS MODULE-19



LAND REFORMS

1 After independence, there was a need to revamp the land structure which was feudalistic and exploitative under the British.

2 Land reform means a transformation of the structure of agro-economic institutions

- It includes altering the existing pattern of ownership, tenancy and management of land.
- Land reforms also includes 'Land ceiling' including redistribution of land to the landless

OBJECTIVES OF LAND REFORMS

- Agricultural productivity
- Social upliftment



PRE-INDEPENDENT INDIA

Because of the Mughal and British rule in India, Land system in India characterized of-

- absentee landlordism
- exploitation of tenants by demanding high rents and eviction of tenants
- unequal distribution of land
- Fragmented land holdings
- Lack of agricultural credit

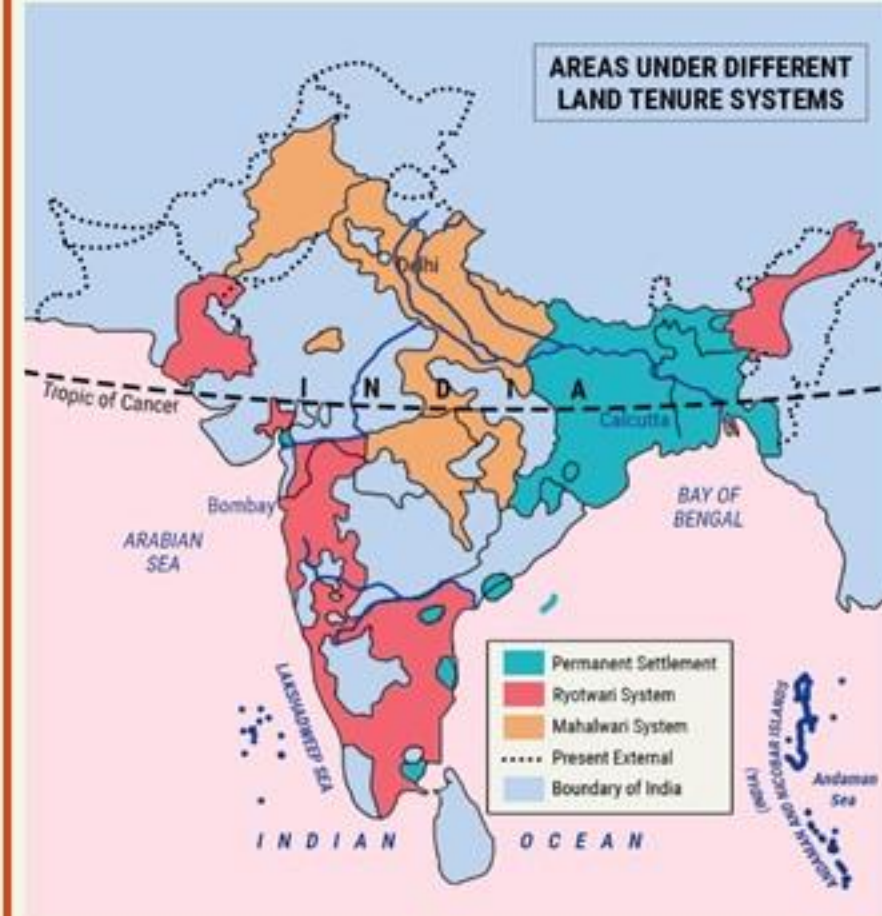


PRE-INDEPENDENT INDIA

Land Revenue systems in pre-independent India were

1. ZAMINDARI SYSTEM

- The Zamindari system was introduced by Lord Cornwallis in 1793 through Permanent Settlement
- As the name suggests, land rights of the zamindars was fixed. The land revenue was also fixed and was to be revised after 30-40 years.
- The Zamindari system is also known as absentee landlordism.
- Zamindars never cultivated the land they owned and rented them out to the cultivators
- Zamindars were concerned with extraction of higher rents, thereby exploiting the cultivators.
- Agricultural development was ignored.



PRE-INDEPENDENT INDIA

2. RYOTWARI SYSTEM

Ryotwari system was introduced by Sir Munro in the provinces of Madras, Bombay, Assam and Berar.

- Under this system, each ryot (peasant) was the owner himself and enjoyed the right to transfer or mortgage or sub-let his land.
- The responsibility of paying land revenue to the Government was of the cultivator.
- There was no intermediary between the cultivator and the state.
- The Madras Tenancy Act of 1908 provided for protection of ryots from eviction as long as they paid the rents.
- But because of lack of documentation, the rights of the ryots were often violated.
- The cultivator had more security of tenure.
- Unfortunately the rigid system of revenue collection forced ryots to borrow from moneylender and led to their indebtedness.



Sir Thomas Munro

PRE-INDEPENDENT INDIA

3. MAHALWARI SYSTEM

- Governor General William Bentick introduced the Mahalwari settlement through Regulation VII of 1822 Act and Regulation IX of 1833 Act in parts of United Provinces, North-West Frontier and Punjab.
- Under the Mahalwari system, land was divided into Mahals comprising of one or more villages.
- The revenue was assessed on the basis of the size of the holding, soil condition and peasants of the village had to fulfil that depending on their share
- It had elements of both the Zamindari and the Ryotwari systems.



Lord William Bentinck

1 After independence, the agricultural production of the states of West Bengal, Uttar Pradesh, Bihar and Orissa were the worst affected because of landlordism.

2 States practicing Ryotwari and Mahalwari Systems saw the rise of middlemen in agriculture.

3 Taxes on agricultural produce were moderate during pre-British times. The British made it very high. This forced farmers to cultivate cash crops instead of food crops. Unfortunately, it led to food crisis.

4 Social differentiation between rich and poor widened and lack of documentation worsened the conditions of the poor.

5 Because of continuous borrowing, moneylenders often became landowners.



Land Reform thus became important to bring agricultural along with social justice

OBJECTIVES

- 1 achieve an egalitarian structure
- 2 Socialist objective of redistribution of land
- 3 Consolidation of land
- 4 Tenancy reforms to provide security to tenants and rationalisation rent
- 5 Empowerment of women in the traditionally male driven society.

- 6 Increasing agricultural production and productivity

- 7 Develop a culture of cooperative farming.

- 8 Tribal protection by ensuring their land is not encroached upon by outsiders.



9 After Independence, the Indian National Congress appointed the Agrarian Reforms Committee under the Chairmanship of J.C. Kumarappa, for making an in-depth study of the agrarian relations prevailing in the country.

10 The committee submitted its report in 1949 which had a considerable impact on the evolution of agrarian reforms policy in the post-independence period.

11 The committee recommended

- I. all intermediaries between the state and the tiller should be eliminated
- II. land must belong to the tiller subject to certain conditions.



J C Kumarappa

12 Following the recommendation of Kumarappa Committee, with regional variation, all the states in India enacted legislation for the abolition of intermediary tenures

13 The most effective implementation was in the states of West Bengal and Jammu & Kashmir which introduced legislations for imposition of Land Ceiling and abolition of middlemen.

14 In other states a timeline for Land Ceiling was not introduced which allowed intermediaries to illegal transfers of land.



STEPS UNDERTAKEN

(i) ABOLITION OF INTERMEDIARIES

When Zamindari system was abolished, the land owners were compensated.

ACHIEVEMENTS

- It led to 2.5 crore farmers being brought into direct relationship with the State.
- Distribution of 61 lakh hectares of land to landless farmers.
- Large areas of privately-owned forests and wasteland vested in the State.

SHORTCOMINGS

- It led to large-scale ejection of poor tenants from land.
- The legislation conferred ownership rights not upon the actual cultivator, but on the statutory tenant, who himself was an intermediary with a chain of sub-tenants under him.



Undoubtedly, this zamindari abolition has paved the way for a remarkable shift in the balance of power. But the goal of “land to the tiller” is yet to be achieved.

STEPS UNDERTAKEN

(ii) TENANCY REFORMS

OBJECTIVES

- Land to the tiller
- Incentives to increase agriculture
- Security to tenants of ex-intermediaries

SHORTCOMINGS

- Through legal measures, the landlords secured mass eviction of tenants, sub-tenants and sharecroppers
- The absence of documentation was utilized by the landlords to secure eviction of all types of tenants.

STEPS TAKEN

State Governments had to enact or amend the laws in the subsequent years and provide for adequate safeguards against illegal eviction and ensure security of tenure.



POST INDEPENDENCE DEVELOPMENTS

IMPLEMENTATION OF TENANCY REFORMS BY STATES



Learning Space

- 1 Kerala banned agricultural tenancy altogether without having any exception.
- 2 In order to give land to the tiller the tenancy laws of several states including Andhra Pradesh (Telangana region), Bihar, Himachal Pradesh, Karnataka, Madhya Pradesh and Uttar Pradesh banned leasing out of agricultural land except by certain disabled categories of landowners.
- 3 States like Punjab, Haryana, Gujarat and Haryana did not ban tenancy. But tenants after continuous possession of land for certain specified years, acquired the right of purchase of the land they cultivated.

- 4 West Bengal, Orissa, Tamil Nadu and Andhra area of Andhra Pradesh did not ban leasing-out of agricultural land. The State of West Bengal recognized share-croppers as tenants only with effect from 1979, with the launching of 'Operation Barga'.



STEPS UNDERTAKEN

(iii) CEILINGS OF LAND HOLDING

‘Ceiling on land holdings’ refers to the legally stipulated maximum size beyond which no individual farmer or farm household can hold any land.

This helps in increasing

- economic efficiency of resource use
- improving social equity through employment creation
- equitable income distribution.



POST INDEPENDENCE DEVELOPMENTS

IMPLEMENTATION OF CEILING LAWS

1 The operations of the ceiling law made virtually no impact on the agrarian structure.

2 The public debate on Land Ceiling enabled landowners to manipulate land records leading to fictitious (benami) and fraudulent partitions of lands among their relations, friends, fictitious trusts, etc.

3 As a result, only the small landowners suffered with little impact on the agrarian structure.

4 Land was not redistributed among the landless peasants.

5 Lack of political will is considered to be the greatest stumbling block for its speedy implementation



IMPLEMENTATION OF LAND CEILING

1 Apart from West Bengal and Jammu & Kashmir, the ceiling laws were not ratified along with abolition of zamindari.

2 Several nami and benami transfer of land took place reducing the ceiling surplus land available for redistribution.



Besides, several states including Andhra Pradesh, Assam, Bihar followed individuals as the unit of application for ceiling, while states like Gujarat, Karnataka, Kerala followed family as the unit of application.

STEPS UNDERTAKEN

(iv) CONSOLIDATION OF LANDHOLDINGS

BACKGROUND

Land had been divided in India to share amongst the ever-growing population and expected employment generation. But the fragmentation of land holdings

- affected irrigation management
- agriculture productivity affected
- agriculture made non-renumerative.

‘Consolidation of holdings’ refers to amalgamation and redistribution of the fragmented land to boost efficiency and economy in India’s agriculture.

The consolidation acts provided for

- Fixing minimum standard area for fragmentation and further
- compensation to persons allotted holdings of less market value in exchange
- administrative machinery for carrying consolidation schemes
- filing of objections, appeals and penalties.

POST INDEPENDENCE DEVELOPMENTS

CONSOLIDATION OF LANDHOLDINGS

IMPLEMENTATION

1 After independence, almost all states excepting Tamil Nadu, Kerala, Manipur, Nagaland, Tripura and parts of Andhra Pradesh enacted laws for consolidation of holdings.

2 But the nature of legislation and the degree of success achieved varied widely. For example, in Punjab (including Haryana) it was made compulsory, in other states it was on voluntary basis, if majority of the land owners agreed.

SHORTCOMINGS

- Small farmers have a strong fear that consolidation favors large farmers.
- This increases the threat of eviction of tenants from land out of consolidation.
- Lack of adequate political and administrative support



LAND REFORMS UNDERTAKEN BY INDIA AFTER INDEPENDENCE

FIRST FIVE YEAR PLAN

- Abolition of intermediaries
- Right to tenants to cultivate land
- Increase land efficiency

SECOND FIVE YEAR PLAN

- Focus on Soil conservation and irrigation
- Address issue of low land productivity

THIRD FIVE YEAR PLAN

- Intensive area development program
- Scientific study of Soils

FOURTH FIVE YEAR PLAN

- Land reforms like land ceiling acts and consolidation of holdings
- Institutional changes

FIFTH FIVE YEAR PLAN

- Drought prone area development
- Desert area development



LAND REFORMS UNDERTAKEN BY INDIA AFTER INDEPENDENCE

SIXTH FIVE YEAR PLAN

Study of drought prone areas and subsequent Land and Water Management

SEVENTH FIVE YEAR PLAN

Wasteland development program

EIGHTH FIVE YEAR PLAN

- Focus watershed area for agriculture.
- Soil conservation merged with watershed management

NINTH FIVE YEAR PLAN

- Maintenance of village commons
- Revised Land legislation introduced



1 The Bhoodan movement was launched in 1951 and Gramdan came into being in 1957.

2 The objective was to persuade landowners and leaseholders to renounce their land rights, after which all the lands would become the property of a village association for the egalitarian redistribution and for purpose of joint cultivation.

3 Vinoba Bhave hoped to eliminate private ownership of land through Bhoodan and Gramdan

4 The objective of the movements were to ensure the just redistribution of land, the consolidation of holding and their joint cultivation.



IMPLEMENTATION OF MOVEMENTS

- 1 Of the total land of about 42.6 lakh acres, received through Bhoodan, more than 17.3 lakh acres were rejected as they were found unfit for cultivation.
- 2 The landlords used to part away with their disputed lands as a compromise formula. In return for such land donation, the landlords also received input subsidies and other facilities.
- 3 However, the movement failed to achieve its targeted objectives and the degree of success in respect of both land acquisition and land distribution was very limited.



RIGHT TO FAIR COMPENSATION AND TRANSPARENCY IN LAND ACQUISITION, REHABILITATION & RESETTLEMENT ACT, 2013

- 1** The Act provides for land acquisition as well as rehabilitation and resettlement. It replaces the Land Acquisition Act, 1894.
- 2** The process for land acquisition involves a Social Impact Assessment survey, preliminary notification stating the intent for acquisition, a declaration of acquisition, and compensation to be given by a certain time.
- 3** All acquisitions require rehabilitation and resettlement to be provided to the people affected by the acquisition.
- 4** Compensation for the owners of the acquired land shall be four times the market value in case of rural areas and twice in case of urban areas.

THE RIGHT TO FAIR COMPENSATION AND TRANSPARENCY IN LAND ACQUISITION, REHABILITATION AND RESETTLEMENT ACT, 2013

PREAMBLE

a humane, participative, informed and transparent process for land acquisition for
industrialisation, development of essential infrastructural facilities and urbanisation
with the least disturbance to the owners of the land

5 In case of acquisition of land for use by private companies or public private partnerships, consent of 80 per cent of the displaced people will be required.

6 Purchase of large pieces of land by private companies will require provision of rehabilitation and resettlement.

7 The provisions of the Act shall not apply to acquisitions under 16 existing legislations including the Special Economic Zones Act, 2005, the Atomic Energy Act, 1962, the Railways Act, 1989, etc

8 Distribution of ceiling surplus land- with the introduction of land ceiling legislation in 1972, ceiling on land holdings was introduced in 19 States and 3 Union Territories.

9 The 1972 National guidelines recommended ceiling limits ranging from 10-18 acres for irrigated land with two crops, 27 acres for irrigated land with one crop and 54 acres for dryland.



10 Distribution of Government' Wastelands has been one of the key strategies of land reforms in the Country.

11 It has been the accepted policy of the Central Government that wastelands at the disposal of the State Governments should be distributed amongst eligible rural poor.

12 Confirmation of ownership rights to tenants

13 Legislative provisions have been made in many areas of the country for conferment of ownership rights on tenants or allowing cultivating tenants to acquire ownership rights on payment of compensation.

14 Some of the States have acquired ownership of land from landowners and transferred it to tenants



ASSESSMENT OF LAND REFORMS

Land reform measures are costless methods of increasing production in the agricultural sector, serving the purpose of social justice.

SHORTCOMINGS

- The objective “land to the tiller” remained unfulfilled.
- A class of neo-zamindars or absentee landlords arose in the rural areas
- There was large scale ejection of tenants. The consequence of the tenancy policy was to push tenancies underground. Most of the tenancies that still exist take the form of informal or concealed crop-sharing arrangements.
- The pace of implementation of land reform measures have been slow. Moreover, there is a marked unevenness in respect of progress in various states.



ASSESSMENT OF LAND REFORMS

ACHIEVEMENTS

The objective of social justice has, however, been achieved to a considerable degree.

- The intermediary rights have been abolished. Indian structure of feudalism and serfdom have been abolished
- The tenancy laws have given the tillers protection from exploitation by providing them security of tenure and fixing maximum chargeable rents.

But the progress has been slow and it needs to be accelerated.



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